

STATE OF NEW YORK

5361--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 13, 2025

Introduced by M. of A. FORREST, LEVENBERG, OTIS -- read once and referred to the Committee on Governmental Operations -- recommitted to the Committee on Governmental Operations in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public buildings law, in relation to signage for and access to lactation rooms in public buildings

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 144 of the public buildings law, as added by
2 section 1 of part JJ of chapter 58 of the laws of 2018, is amended to
3 read as follows:
4 § 144. Lactation room in public buildings. 1. As used in this section:
5 (a) "covered public building" means a public building owned by the
6 state of New York, under the supervision and control of the commissioner
7 of general services, that is determined by said commissioner to be open
8 to the public; and
9 (b) "lactation room" means a hygienic place, other than a bathroom,
10 that:
11 (1) is shielded from view;
12 (2) is free from intrusion;
13 (3) is well lit;
14 (4) contains a chair, a working surface, nearby access to clean
15 running water, and, if the public building is otherwise supplied with
16 electricity, an electrical outlet; and
17 ~~(4)~~ (5) is intended to be used for the primary purpose of breast-
18 feeding or expressing breast milk.
19 2. A covered public building shall contain a lactation room that is
20 made available for use by a member of the public to breastfeed or
21 express breast milk.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets ~~[-]~~ is old law to be omitted.

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1 3. A covered public building shall be excluded from the requirement of
2 subdivision two of this section if[÷

3 ~~(a) the public building does not have a room that could be repurposed~~
4 ~~as a lactation room or a space that could be made private, at a reason-~~
5 ~~able cost; or~~

6 ~~(b)]~~ new construction would be required to create a lactation room in
7 the public building and the cost of such construction is unfeasible.

8 4. A covered public building containing a lactation room that is made
9 available for use by a member of the public to breastfeed or express
10 breast milk shall have a sign notifying the public of the availability
11 of such lactation room. Such sign shall be posted publicly in a conspic-
12 uous location, either directly outside the entrance of such lactation
13 room or within the reception area of such public building.

14 5. The office of general services shall compile a directory of public
15 buildings which contain lactation rooms that are made available for use
16 by members of the public to breastfeed or express breast milk. Such
17 directory shall be posted on the office of general service's website by
18 no later than six months after the effective date of the chapter of the
19 laws of two thousand twenty-six that amended this section and shall be
20 periodically updated every six months thereafter. Such directory shall
21 indicate if a public building listed on such directory has extra
22 requirements to access a lactation room pursuant to paragraph (b) of
23 subdivision six of this section and list any such extra requirements.

24 6. (a) Nothing in this section shall be construed to authorize an
25 individual to enter a public building that the individual is not other-
26 wise authorized to enter.

27 (b) If a lactation room is in a public building, or a location in a
28 public building, that a member of the public would not otherwise be
29 authorized to enter, the operating agency of such building shall estab-
30 lish clear rules and requirements to allow a member of the public to
31 access such lactation room to breastfeed or express breast milk, unless
32 such access shall unduly imperil public safety.

33 § 2. This act shall take effect immediately.